

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maryann Wong	Team: Team # 2	CCRB Case #: 201012873	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/19/2010 10:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/19/2012	Precinct: 113		
Date/Time CV Reported Tue, 09/21/2010 1:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/21/2010 1:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Carleo	12860	934580	113 PCT
2. SGT Fitzroy Vigilance	04583	918667	113 PCT
3. POM Joseph Ferrari	30978	932637	113 PCT
4. POM Jason Lemelledo	26830	945383	113 PCT
5. POM Anthony Spedaleri	23674	946287	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Simone Everett	17800	943866	113 PCT
2. POM Gary Huston	19507	917773	113 PCT
3. POM John Lawrence	19987	942045	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Ferrari	Abuse: PO Joseph Ferrari entered § 87(2)(b)	A . Exonerated
B . POM Joseph Ferrari	Abuse: PO Joseph Ferrari drew his gun.	B . Exonerated
C . POM Jason Lemelledo	Abuse: PO Jason Lemelledo drew his gun.	C . Exonerated
D . SGT Fitzroy Vigilance	Abuse: Sgt. Fitzroy Vigilance searched § 87(2)(b)	D . Exonerated
E . SGT Fitzroy Vigilance	Force: Sgt. Fitzroy Vigilance used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . SGT Fitzroy Vigilance	Force: Sgt. Fitzroy Vigilance used physical force against § 87(2)(b)	F . Exonerated
G . POM Joseph Ferrari	Force: PO Joseph Ferrari used physical force against § 87(2)(b)	G . Exonerated
H . POM Jason Lemelledo	Force: PO Jason Lemelledo used physical force against § 87(2)(b)	H . Exonerated
I . POM Anthony Spedaleri	Force: PO Anthony Spedaleri used physical force against § 87(2)(b)	I . Exonerated
J . POM Michael Carleo	Force: PO Michael Carleo used physical force against § 87(2)(b) and § 87(2)(b)	J . Unsubstantiated
K . POM Michael Carleo	Discourtesy: PO Michael Carleo spoke obscenely to § 87(2)(b)	K . Unsubstantiated

Case Summary

On September 21, 2010, § 87(2)(b) filed a complaint with the CCRB via phone (encl. 3A-B).

On September 19, 2010, around 10:30 a.m., officers responded to a 911 call regarding a domestic dispute with a knife at § 87(2)(b) in Queens. § 87(2)(b) was arrested for

§ 87(2)(a) 160.50

§ 87(2)(b)'s husband, § 87(2)(b) was arrested for § 87(2)(a) 160.50

§ 87(2)(b). The following allegations resulted from the officers' actions.

- **Allegation A – Abuse of Authority: PO Joseph Ferrari entered** § 87(2)(b) § 87(2)(g) it is recommended that Allegation A be **exonerated**.
- **Allegation B – Force: PO Joseph Ferrari drew his gun.**
- **Allegation C – Force: PO Jason LeMelledo drew his gun.** § 87(2)(g) It is recommended that Allegations B and C be **exonerated**.
- **Allegation D – Abuse of Authority: Sgt. Fitzroy Vigilance searched** § 87(2)(b) § 87(2)(g) It is recommended that Allegation D be **exonerated**.
- **Allegation E – Force: Sgt. Fitzroy Vigilance used a chokehold against** § 87(2)(b) § 87(2)(g) It is recommended that Allegation E be **unsubstantiated**.
- **Allegation F – Force: Sgt. Fitzroy Vigilance used physical force against** § 87(2)(b)
- **Allegation G – Force: PO Joseph Ferrari used physical force against** § 87(2)(b)
- **Allegation H – Force: PO Jason LeMelledo used physical force against** § 87(2)(b)
- **Allegation I – Force: PO Anthony Spedaleri used physical force against** § 87(2)(b) § 87(2)(g) It is recommended that Allegations F, G, H and I be **exonerated**.
- **Allegation J – Force: PO Michael Carleo used physical force against** § 87(2)(b) and § 87(2)(b) § 87(2)(g) It is recommended that Allegation J be **unsubstantiated**.
- **Allegation K – Discourtesy: PO Michael Carleo spoke obscenely to** § 87(2)(b) § 87(2)(g) It is recommended that Allegation K be **unsubstantiated**.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) is a black male, § 87(2)(b) with black hair and brown eyes.

CCRB Testimony

On October 6, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 4A-D). On September 19, 2010, around 10: 30 a.m., § 87(2)(b) was involved in a verbal argument with his wife, § 87(2)(b)

§ 87(2)(b) at their house at § 87(2)(b) in Queens. § 87(2)(b) could not remember what they were arguing about, but the argument never became physical. The two never threatened each other with a weapon. § 87(2)(b) was on the phone with somebody, but § 87(2)(b) did not know who it was. § 87(2)(b) never told anyone on the phone that the fight was physical or that there was a weapon involved.

§ 87(2)(b) left the apartment in order to get his log book from his vehicle. After he got his log book, he went immediately back inside the house. While he was outside of his apartment, § 87(2)(b) did not smoke anything, did not talk to any person and did not conduct any other action.

§ 87(2)(b) went inside his bathroom. While he was in the bathroom, he heard the doorbell ring, but he assumed it was the mailman or a Jehovah's Witness. He did not hear any person scream "Police," or bang on the front door. PO Joseph Ferrari, PO Gary Huston, PO Jason LeMelledo and PO Anthony Spedaleri, all identified via investigation, entered the apartment through the unlocked door. PO Ferrari and PO LeMelledo had their guns out but not pointed.

The officers explained that someone had called in regards to a dispute with a weapon. § 87(2)(b) told the officers that they could not enter his house. The officers waited for about five minutes and more officers arrived, Sgt. Fitzroy Vigilance, PO Simone Everett, PO John Lawrence and PO Michael Carleo, all identified via investigation.

§ 87(2)(b) told the officers that he and § 87(2)(b) had a verbal dispute, but now everything was fine. § 87(2)(b) asked the officers to leave. Sgt. Vigilance walked down the hallway and looked inside the bathroom, which was open. Sgt. Vigilance did not open any doors or enter any room. § 87(2)(b) told Sgt. Vigilance that he knew his rights. § 87(2)(b) turned around to pick up his cell phone from the dresser in the hallway so that he could leave the apartment.

Sgt. Vigilance came from behind § 87(2)(b) and placed him into a headlock for about five minutes causing § 87(2)(b)'s breathing to be restricted. Sgt. Vigilance brought § 87(2)(b) to the floor. PO Ferrari, PO LeMelledo and PO Carleo ran over and started kicking § 87(2)(b) in his face and over his body. Sgt. Vigilance banged the front, right side of § 87(2)(b)'s face against the floor. The officers did this for about three minutes until Sgt. Vigilance got the handcuffs on § 87(2)(b).

§ 87(2)(b) heard a can shaking and he heard § 87(2)(b) screaming that the officers could not mace him. Sgt. Vigilance picked up § 87(2)(b) by his handcuffs and pushed him from behind out the door. There are three or four steps going from the door and § 87(2)(b) stumbled down the steps. § 87(2)(b) did not fall onto the ground but stumbled into the wall at the bottom of the steps. Sgt. Vigilance approached him and escorted him to the police vehicle.

§ 87(2)(b) sustained § 87(2)(b) and was treated at § 87(2)(b). § 87(2)(b) took his arrest photo after returning from the hospital. § 87(2)(b) was arrested for § 87(2)(a) 160.50

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black female, § 87(2)(b) with black hair and brown eyes.

CCRB Testimony

On October 6, 2001, § 87(2)(b) was interviewed at the CCRB (encl. 5A-E). § 87(2)(g)

§ 87(2)(b) was on the phone with her § 87(2)(b)-old daughter, § 87(2)(b) during the argument. § 87(2)(b)'s daughter later told § 87(2)(b) that she called 911 after their conversation so that the police would take away § 87(2)(b) and stop the argument. § 87(2)(b) also told § 87(2)(b) that she never told the officers that a weapon was involved.

§ 87(2)(b) and § 87(2)(b) stopped fighting and § 87(2)(b) went outside. § 87(2)(b) did not know why § 87(2)(b) went outside, but she thought he went outside to smoke a cigarette. § 87(2)(b) came back inside after a couple minutes; he closed the front door but had not locked it. After 15 minutes, PO Ferrari, PO LeMelledo, PO Huston and PO Carleo opened the front door without knocking and without identifying themselves as officers.

§ 87(2)(b) thought that the officers thought she was scared so she told them that she was not scared and that now everything was okay. PO Everett pulled § 87(2)(b) aside and spoke to her nicely; she wanted § 87(2)(b) to move away from § 87(2)(b).

Sgt. Vigilance walked down the hallway, opened the bathroom door and the bedroom door, and looked inside; he did not enter any room. § 87(2)(b) told Sgt. Vigilance that he was not allowed to do that. § 87(2)(b) decided to leave the residence and started walking towards the front door. Sgt. Vigilance came from behind § 87(2)(b) and placed him into a headlock. After holding him in a headlock for one or two minutes, Sgt. Vigilance brought § 87(2)(b) to the ground. § 87(2)(b) did not resist. PO1 immediately handcuffed § 87(2)(b) on the ground. After being handcuffed, PO Ferrari, PO Huston, PO Carleo and PO LeMelledo kicked and punched § 87(2)(b) on his face and his body for about five minutes.

PO2 took out a mace bottle and started shaking it. § 87(2)(b) ran up to PO Carleo and stood about one foot away from his body. § 87(2)(b) did not touch PO Carleo but screamed that he could not mace § 87(2)(b). PO Carleo punched § 87(2)(b) on the bottom, right side of her cheek. § 87(2)(b) turned around and sat down on the couch. § 87(2)(b) felt blows to her legs, body and back and when she turned around, PO Carleo was there. At first § 87(2)(b) was unsure who beat her from behind, but then assumed that it was PO Carleo. PO Carleo said something to the effect of, "Bitch, don't you ever come over here when we're dealing with an arrestee." § 87(2)(b) screamed back at PO Carleo. While this was happening, the officers were still beating § 87(2)(b).

The officers escorted § 87(2)(b) out of the apartment, leaving § 87(2)(b) in the apartment. Sgt. Vigilance later returned and handcuffed § 87(2)(b).

§ 87(2)(b) sustained § 87(2)(b) and was treated at § 87(2)(b). § 87(2)(b) took her arrest photo in the early morning of September 20, 2010. At the precinct, PO Carleo told § 87(2)(b) that he was her arresting officer. Also, in court, § 87(2)(b) learned that her PO Carleo claimed that she assaulted him, but this was not true. § 87(2)(b) was arrested for § 87(2)(a) 160.50.

NYPD Statements

Subject Officer: OFFICER JOSEPH FERRARI

- PO Ferrari is a white male, § 87(2)(b) with blonde hair and blue eyes.
- On September 19, 2010, PO Ferrari worked from 7:05 a.m. to 3:40 p.m., was assigned to Sector ABG, worked with PO Huston, dressed in uniform and was assigned to a marked vehicle as the operator.

Memo Book

PO Ferrari had the following memo book entry regarding the incident: At 11:20 a.m., 10-52 (dispute) with a knife. At 11:35 a.m., one female and one male in custody.

CCRB Testimony

On October 26, 2010, PO Ferrari was interviewed at the CCRB (encl. 6A-F). PO Ferrari and PO Huston were the first officers on scene and they heard loud yelling inside the house. The officers looked around the house to see how many entrances were there and to secure the area. The officers knocked on the front door, yelled, “police,” and asked the individuals to come to the door. The male and the female continued to yell at each other. PO Ferrari specifically heard the male voice say something to the effect of, “Bitch, you called the cops.”

PO Ferrari tried the door and it happened to be unlocked. At this point, more officers responded because of the seriousness of the call. PO Ferrari yelled up the stairs, “police, police.” § 87(2)(b) s voice got even louder, and he continued to scream at the female. PO Ferrari feared for the safety of any person inside the apartment. Due to the fact that the 911 call involved a knife, PO Ferrari pulled out his firearm and pointed it down at the stairs as he walked up the stairs. At the top of the stairs, there was a wall on the right side where the apartment was located. There is no way to tell what was behind the wall. When the officers reached the area, § 87(2)(b) came out and approached the officers in a fast manner. PO Ferrari put up his hand as if to say “stop,” and pointed his gun at § 87(2)(b) but at a lower range towards his legs.

PO Ferrari repeatedly told § 87(2)(b) to step back, but he refused. § 87(2)(b) came from behind § 87(2)(b) and tried to pull him back. PO Ferrari repeatedly asked § 87(2)(b) if she was hurt and she said that she was not. PO Ferrari started asking a series of questions as to whether or not anyone in the house was injured, where the knife was and other questions in regards to the situation. § 87(2)(b) refused to answer these questions and told the officers to leave because they did not have a warrant.

PO Ferrari told the police officer behind him, identified via investigation as PO LeMelledo, to draw his gun. PO Ferrari explained that if § 87(2)(b) did have a knife on him and if he did try to stab PO Ferrari, the officer behind him would be able to keep PO Ferrari safe. Finally, § 87(2)(b) turned his body as if to allow the officers to enter his apartment but did not back up. PO Ferrari explained to § 87(2)(b) that he was not going to walk in the apartment until § 87(2)(b) backed up. PO Ferrari explained that it was unsafe for him to walk by § 87(2)(b) and possibly have his back towards him. Finally, § 87(2)(b) stepped back. PO Ferrari holstered his weapon and again started asking a series of questions but § 87(2)(b) refused to answer.

§ 87(2)(b) started pacing around the apartment and refused to stand in one spot. The situation was not secure or safe. § 87(2)(b) screamed for the officers to leave so that § 87(2)(b) would calm down. PO Ferrari kept trying to ask questions as to whether § 87(2)(b) was hurt and where the knife was. § 87(2)(b) was yelling very loudly to the point that PO Ferrari was unable to talk over him and tell his partner to get § 87(2)(b) into a different area. The focus of the officers was to separate the two individuals.

Sgt. Vigilance arrived on scene. PO Ferrari was not able to provide his sergeant with any information because all the questions PO Ferrari had asked § 87(2)(b) had not been answered. Sgt. Vigilance asked PO Ferrari if there was anyone else in the house and if anybody had been stabbed. PO Ferrari told Sgt. Vigilance that he did not have any information.

Sgt. Vigilance started walking around the house while PO Ferrari continued to try and get § 87(2)(b) to answer questions. Sgt. Vigilance looked inside rooms in the apartment, but did not open any doors. § 87(2)(b) saw Sgt. Vigilance peering into rooms and became more upset. § 87(2)(b) approached Sgt. Vigilance at a quick pace. Sgt. Vigilance put his hands out in front of him and told § 87(2)(b) to back up. § 87(2)(b) either grabbed or slapped Sgt. Vigilance's hand. Once this happened, § 87(2)(b) was under arrest. The sergeant and PO Ferrari have their "signals" with each other and PO Ferrari knew that § 87(2)(b) was now under arrest for his behavior.

PO Ferrari grabbed one of § 87(2)(b)'s hands. Sgt. Vigilance tried to grab a hand but could not get to it in time, so PO LeMelledo grabbed § 87(2)(b)'s other hand. Sgt. Vigilance tried to bring § 87(2)(b) down to the ground by grabbing his shoulders. Sgt. Vigilance never placed his hands around § 87(2)(b)'s neck and never placed him into a chokehold.

§ 87(2)(b) physically interfered with the arrest by placing her hands between the officers and § 87(2)(b). § 87(2)(b) was very close to the officers and one of her hands was swinging near PO Ferrari's eyes. One or two officers grabbed § 87(2)(b) and pulled her back. PO Ferrari knew that there was a struggle with § 87(2)(b) but he did not witness what happened because he was focused on § 87(2)(b). PO Ferrari assumed that PO Huston was in the back with § 87(2)(b) because when they partner up during domestic disputes, PO Ferrari usually talks to the male and PO Huston talks to the female.

PO Ferrari, Sgt. Vigilance and PO LeMelledo were on the ground as one large unit and rolling around. The officers tried to hold down § 87(2)(b) but he was moving his body and refused to give up his arms. PO Ferrari was concerned that § 87(2)(b) might try to grab his gun. § 87(2)(b) never swung or kicked at the officers and the officers never swung or kicked at § 87(2)(b). PO Ferrari explained that it would have been impossible for either side to conduct these actions because they were all on top of one another, rolling around on the floor in a small area. PO Ferrari could not take his hands off § 87(2)(b)'s body because it would put the situation into jeopardy. § 87(2)(b) was out of control and the next level would be to use a baton or pepper spray, but this was not an option because there were other officers around. Although PO Ferrari felt like the struggle lasted an eternity, he believed the struggle was only a couple seconds.

PO Carleo was one of the last officers to show up. PO Carleo dealt with § 87(2)(b) but PO Ferrari did not know what happened exactly. PO Carleo did not interact with § 87(2)(b). PO Carleo never kicked § 87(2)(b). PO Carleo was not near § 87(2)(b). PO Ferrari never saw PO Carleo punch § 87(2)(b). PO Carleo and no other officer called § 87(2)(b) a "bitch."

The officers escorted § 87(2)(b) downstairs and drove him to the precinct. Sgt. Vigilance did not push § 87(2)(b) from behind. PO Ferrari held onto one of § 87(2)(b)'s arms the entire time when he walked down the stairs. At the vehicle, PO Ferrari conducted a search of § 87(2)(b) incident to arrest. A crowd had formed outside and § 87(2)(b) immediately changed his demeanor as soon as he saw the audience. PO Ferrari found marijuana in § 87(2)(b)'s pockets and § 87(2)(b) started screaming that the officers were planting marijuana on his person.

Subject Officer: OFFICER JASON LEMELLEDO

- PO Lemelledo is a white male, § 87(2)(b) with brown hair and black eyes.
- On September 19, 2010, PO LeMelledo worked from 7:05 a.m. to 3:40 p.m., was assigned to Sector KM, worked with PO Spedaleri, dressed in uniform and was assigned to a marked police vehicle as the operator.

Memo Book

PO LeMelledo had the following memo book entry regarding the incident: At 11:00 a.m., 10-52 (domestic dispute) at § 87(2)(b). At 11:12 a.m., 10-52 with a knife. At 11:20 a.m., 10-84 (at scene), two yelling and nobody answering the door. At 11:35 a.m., two under by Sector 113 A.

CCRB Testimony

On October 25, 2010, PO LeMelledo was interviewed at the CCRB (encl. 7A-E). § 87(2)(g) He added the following information.

As PO LeMelledo walked up the stairs, he had his gun out and at the side because he was concerned about the knife. PO Ferrari was in front of him with his gun out. PO Huston and another officer were behind the officers, but PO LeMelledo did not know if they had their guns out.

When the altercation between § 87(2)(b) and Sgt. Vigilance ensued, Sgt. Vigilance specifically grabbed § 87(2)(b) from behind around his shoulder area. At no time did Sgt. Vigilance place his hands around § 87(2)(b)'s neck. PO LeMelledo grabbed § 87(2)(b)'s left arm and PO Ferrari grabbed the right arm.

PO LeMelledo did not think that PO Carleo ever assisted in gaining control over § 87(2)(b). Sgt. Vigilance, PO LeMelledo and PO Ferrari rolled around with § 87(2)(b).

PO LeMelledo later did see PO Carleo and PO Everett struggling with § 87(2)(b) on the couch, but PO LeMelledo did not see exactly what happened.

Subject Officer: OFFICER ANTHONY SPEDALERI

- PO Spedaleri is a § 87(2)(b)-old white male.
- On September 19, 2010, PO Spedaleri worked from 7:05 a.m. to 3:40 p.m., was assigned to Sector K, worked with PO LeMelledo, dressed in uniform and was assigned to a marked police vehicle.

Memo Book

PO Spedaleri had the following memo book entry regarding the incident: At 11:12 a.m., dispute with a knife at § 87(2)(b). At 11:25 a.m., arrived on scene and heard yelling outside. No answer at the door. At 11:35 p.m., two under arrest by Sector A.

CCRB Testimony

On October 27, 2010, PO Spedaleri was interviewed at the CCRB (encl. 8A-F). § 87(2)(g) He added the following information.

§ 87(2)(b) did not want to walk down with the officers so PO Spedaleri held onto his arm so that he could not run away. Sgt. Vigilance never pushed § 87(2)(b) from behind, but assisted PO Spedaleri in escorting § 87(2)(b) down the stairs. PO Spedaleri never let go of § 87(2)(b)'s arm and he never stumbled down the stairs. Because of his resistance, PO Spedaleri believed that § 87(2)(b) would have stumbled down the stairs if he had let go of his arm.

Subject Officer: SERGEANT FITZROY VIGILANCE

- Sgt. Vigilance is a § 87(2)(b)-old black male.
- On September 19, 2010, Sgt. Vigilance worked from 6:55 a.m. to 3:52 p.m., was assigned as the patrol supervisor, worked with PO Everett, dressed in uniform and was assigned to a marked police vehicle.

Memo Book

Sgt. Vigilance did not bring his memo book; it will be added to the case file upon receipt.

CCRB Testimony

On Oct. 22, 2010, Sgt. Vigilance was interviewed at the CCRB (encl. 9A-E). § 87(2)(g)
He added the following information.

When Sgt. Vigilance arrived on scene, he saw § 87(2)(b) and § 87(2)(b) screaming and using a lot of expletives such as “Get the fuck out.” Sgt. Vigilance’s walked behind both parties to glance into the rooms to see if there were any other persons in the apartment. He did not see a knife when he arrived and he wanted to make sure that no person had a knife in the other rooms. Sgt. Vigilance did not open any doors but did peek inside rooms. As Sgt. Vigilance did this, § 87(2)(b) turned around and aggressively approached Sgt. Vigilance. § 87(2)(b) said something to the effect of, “Get the fuck out; what the fuck are you doing?”

§ 87(2)(b) approached Sgt. Vigilance and Sgt. Vigilance raised his hands up, as if to push § 87(2)(b) back. Sgt. Vigilance told § 87(2)(b) to calm down. § 87(2)(b) slapped Sgt. Vigilance’s hand in a hard and aggressive manner. Then § 87(2)(b) chest-bumped Sgt. Vigilance, pushing him back. Sgt. Vigilance grabbed § 87(2)(b)’s arm and took him down to the floor. § 87(2)(b) never tried to run away from Sgt. Vigilance before this moment. Sgt. Vigilance never placed his hands around § 87(2)(b)’s neck. Sgt. Vigilance did not witness what happened with § 87(2)(b)

Subject Officer: OFFICER MICHAEL CARLEO

- PO Carleo is a white male, § 87(2)(b) with balding hair and hazel eyes.
- On September 19, 2010, PO Carleo worked from 7:05 a.m. to 3:40 p.m., was assigned to sector DEFJ, worked with PO Lawrence, dressed in uniform and as assigned to a marked vehicle as the operator.

Memo Book

PO Carleo had the following memo book entry regarding the incident: At 11:15 a.m., in Sector A for a 10-34 (assault) at § 87(2)(b) At 11:35 a.m., transported one female to the 113th Precinct. At § 87(2)(b) § 87(2)(b) was transported to § 87(2)(b) for § 87(2)(b). § 87(2)(b) was also transported for § 87(2)(b). At § 87(2)(b), at § 87(2)(b) for § 87(2)(b). At § 87(2)(b) discharged by the doctor. On fly page: § 87(2)(b) at 11:30 a.m., stated that she did not know she was not allowed to touch/strike a police officer, PO Everett and PO Huston upstairs at the time of statement.

CCRB Testimony

On October 15, 2010, PO Carleo was interviewed at the CCRB (encl. 10A-G). § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

When PO Carleo got upstairs, he saw Sgt. Vigilance and § 87(2)(b) on the ground struggling. Initially, only Sgt. Vigilance was struggling with § 87(2)(b). PO Everett, PO Huston, PO Ferrari and PO LeMelledo were standing around the sergeant. They were not initially assisting. PO Carleo assisted his sergeant by holding § 87(2)(b) down in his shoulder area so that they could pull his arms up. PO Carleo did not punch § 87(2)(b). He possibly kicked § 87(2)(b) around his upper torso. At first PO Carleo stated that the kick was an accident but then explained that he kicked § 87(2)(b) in the arm instead of trying to tackle the sergeant out of the way. PO Carleo possibly kicked § 87(2)(b) more than once, but he did not kick him more than two times. PO Carleo feared for his sergeant's safety because he had no idea if § 87(2)(b) still had a knife on him.

PO Carleo never took out his pepper spray. The officers were in too close quarters to the civilian, so pepper spray was not an option. PO Carleo felt blows from behind against his back and arm area. PO Carleo also felt someone grabbing him. PO Carleo did not know what exactly happened because his adrenaline was running. PO Carleo turned around and saw § 87(2)(b). PO Everett tried to pull § 87(2)(b) back but PO Everett could not gain control over her. PO Carleo pushed § 87(2)(b) back around her upper torso area and continued to restrain § 87(2)(b) with the other officers. PO Carleo got hit from behind again. There were enough officers assisting in restraining § 87(2)(b) so PO Carleo turned around to apprehend § 87(2)(b). PO Everett and PO Huston tried to restrain § 87(2)(b).

When PO Carleo went to apprehend § 87(2)(b) he accidentally punched her. § 87(2)(b) was flailing her arms towards him, so he tried to grab her arms. When PO Carleo tried to grab her arms, he accidentally punched her in the face causing a laceration to her bottom lip. In the struggle, § 87(2)(b) fell back, possibly on the couch. § 87(2)(b) then became cooperative. PO Carleo did not handcuff § 87(2)(b). PO Carleo explained that he did not handcuff § 87(2)(b) because she was not under arrest and he did not know the circumstances about the fight between her and § 87(2)(b). If she was a victim, then PO Carleo would not arrest her. PO Carleo did not recall if he called § 87(2)(b) a "bitch," but he believed that it was unlikely he would have made this comment.

PO Carleo picked up his sunglasses from the floor. PO Carleo asked § 87(2)(b) if she understood that she was not allowed to hit police officers. § 87(2)(b) stated that she was unaware that she could not hit police officers. PO Everett and PO Huston heard this conversation.

PO Carleo went downstairs and informed Sgt. Vigilance that § 87(2)(b) had physically interfered and grabbed him from behind. Sgt. Vigilance agreed that § 87(2)(b) should be placed under arrest. PO Carleo sustained an injury to his left ring finger. PO Carleo thought that it was fractured, but after going to the hospital after the incident, he found out that it was okay.

Witness Officer: OFFICER GARY HUSTON

- PO Huston is a § 87(2)(b)-old black male.
- On September 19, 2010, PO Huston worked from 7:05 a.m. to 3:40 p.m., was assigned to patrol, worked with PO Ferrari, dressed in uniform and was assigned to marked vehicle as the recorder.

Memo Book

PO Huston had the following memo book entry regarding the incident: At 10:25 a.m., dispute at § 87(2)(b)

CCRB Testimony

On October 27, 2010, PO Huston was interviewed at the CCRB (encl. 11A-D). § 87(2)(g)

At one point, Sgt. Vigilance placed § 87(2)(b) under arrest. § 87(2)(b) got arrested because he was loud. PO Huston's role was to be in the living room and § 87(2)(b) got arrested around the corner, near the kitchen, so PO Huston did not see what initially happened between § 87(2)(b) and Sgt. Vigilance.

§ 87(2)(b) jumped in between the officers and § 87(2)(b) and interfered with her hands. PO Huston believed that officers assisted him, but he did not know who they were. PO Huston did not handcuff her because she was not under arrest. § 87(2)(b) stopped interfering and PO Huston stood next to her for the rest of the incident.

§ 87(2)(b) sat down at the couch at one point. PO Huston did not see any physical altercation between § 87(2)(b) and any other officer besides the original use of force to pull her back away from the officers dealing with § 87(2)(b).

When PO Huston was asked if § 87(2)(b) had a verbal interaction with any officer, PO Huston explained that PO Carleo was looking for his glasses in the area. When asked again if § 87(2)(b) specifically had a verbal interaction with PO Carleo, PO Huston testified that there was a verbal conversation between § 87(2)(b) and another officer, but PO Huston did not know which officer this was, what the conversation was about and if PO Carleo was part of this conversation.

When asked why PO Carleo was looking for his glasses, PO Huston explained that PO Carleo was looking for his glasses because he had lost them when he restrained § 87(2)(b). When asked how PO Carleo restrained § 87(2)(b), PO Huston again updated his statement and testified that he did not know if PO Carleo had an interaction with § 87(2)(b) or § 87(2)(b) and did not witness any verbal or physical interaction; he explained that he only made the assumption that PO Carleo restrained § 87(2)(b) because he had been looking for his glasses in the area. PO Huston noticed an injury on § 87(2)(b)'s lip, but he did not know how she sustained this injury.

Witness Officer: OFFICER SIMONE EVERETT

- PO Everett is a § 87(2)(b)-old black female.
- On September 19, 2010, PO Everett worked from 7:05 a.m. to 3:40 p.m., was assigned as the sergeant's operator, worked with Sgt. Vigilance and dressed in plainclothes.

Memo Book

PO Everett had the following memo book entry regarding the incident: At 11:25 a.m., § 87(2)(b) dispute.

CCRB Testimony

On October 22, 2010, PO Everett was interviewed at the CCRB (encl. 12A-D). PO Everett was at the front of the apartment with § 87(2)(b) while about four officers were at the rear of the apartment with § 87(2)(b). § 87(2)(b) was apprehended by about four officers; PO Everett did not witness how the officers gained control over him.

§ 87(2)(b) went towards the officers and tried to grab § 87(2)(b). PO Everett told § 87(2)(b) not to interfere but § 87(2)(b) continued to interfere. PO Everett grabbed § 87(2)(b) and had her sit on the couch. No officer assisted PO Everett in apprehending § 87(2)(b). PO Carleo did not punch § 87(2)(b) or use physical force against her.

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Sprint (encl. 16A-C)

The Sprint indicates that at 11:01 a.m., § 87(2)(b) (§ 87(2)(b)) called 911 to report that her mother and father were fighting and then the phone was disconnected. At 11:12 a.m., another 911 call came in from § 87(2)(b) stating that her father had a knife and that he was choking and hitting her mother. At 11:14 a.m., officers arrived on scene. At 11:35 a.m., two individuals were under arrest.

Arrest Report (encl. 17A-D)

§ 87(2)(a) 160.50

Line-of-Duty Injury Report (encl. 19A-F)

PO Carleo's injury report indicates that § 87(2)(b) interfered with PO Carleo by kicking and grabbing said officer. While PO Carleo was restraining § 87(2)(b) from assaulting other officer, PO Carleo sustained a § 87(2)(b) and was removed to § 87(2)(b) for treatment. Line of a duty designation was granted. PO Lawrence and PO Everett wrote witness testimonies that PO Carleo sustained § 87(2)(b) when apprehending § 87(2)(b). He sustained a § 87(2)(b).

Medical Treatment of Prisoner Report (encl. 20A)

§ 87(2)(b)'s medical treatment report indicates that she received a cut to § 87(2)(b) in order to restrain her from interfering with police business. § 87(2)(b) attempted to assault another officer and the defendant was punched in her mouth.

Criminal Court Complaint (encl. 21A-B)

§ 87(2)(a) 160.50

Property Vouchers (encl. 18A)

§ 87(2)(b)'s property vouchers confirm that marijuana was found on his person.

Status of Civil Proceedings

§ 87(2)(b) and § 87(2)(b) have not filed a notice of claim in regard to the incident.

Arrest Disposition

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 2H).

Subject Officers CCRB History

- PO Ferrari has been a member of the service for seven years and there are no substantiated allegations against him (encl. 2A).
- PO LeMelledo has been a member of the service for two years and there are no substantiated allegations against him (encl. 2B).
- Sgt. Vigilance has been a member of the service for thirteen years and there are no substantiated allegations against him (encl. 2C-D).
- PO Spedaleri has been a member of the service for two years and there are no substantiated allegations against him (encl. 2F).
- PO Carleo has been a member of the service for six years and there are no substantiated allegations against him (encl. 2G).

Conclusion

Identification of Subject Officers

PO Ferrari, PO LeMelledo, PO Carleo, Sgt. Vigilance and PO Spedaleri all admitted to interacting with § 87(2)(b) and § 87(2)(b)

Allegations not Pled

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Joseph Ferrari entered § 87(2)(b)

The officers testified that they responded to a domestic dispute involving a knife. The Sprint confirms this. All officers also testified that they heard loud screaming inside the apartment upon arrival.

Under the emergency doctrine, a police officer can enter premises without a warrant to protect individuals in distress. This exigency, therefore, is based on the officer's obligation to protect life and property. In People v. Mitchell, 39 N.Y.2d 173 (1976) (encl. 1A-F), the court held that a warrantless entry, based on the emergency doctrine, can take place if the police officer can justify reasonable belief that there is a emergency at hand and that there is an immediate need for their assistance for the protection of life or property. § 87(2)(g)

it is recommended that Allegation A be **exonerated**.

Allegation B – Force: PO Joseph Ferrari drew his gun.

Allegation C – Force: PO Jason LeMelledo drew his gun.

All parties agree that PO Ferrari and PO LeMelledo had their guns drawn upon entry. As discussed in Allegation A, the officers responded to a dangerous job: a domestic dispute involving a knife. The Police Department v. Gliner OATH Index No. 955/00 (2000) (encl. 1G-U) notes that an officer is permitted “broad discretion” to display (by pointing and/or drawing) whenever he feels that his life or the life of another is threatened. § 87(2)(g)

It is recommended that Allegations B and C be **exonerated**.

Allegation D – Abuse of Authority: Sgt. Fitzroy Vigilance searched § 87(2)(b)

All parties agree that Sgt. Vigilance looked into rooms at the residence. § 87(2)(b) did state that Sgt. Vigilance opened doors to the rooms, but § 87(2)(b) and the officers did not corroborate this.

Under the emergency doctrine, a police officer can search premises without a warrant to protect individuals in distress. This exigency, therefore, is based on the officer’s obligation to protect life and property. In People v. Mitchell, 39 N.Y.2d 173 (1976) (encl. 1A-F), the court held that a warrantless search, based on the emergency doctrine, can take place if the police officer can justify reasonable belief that there is something in the premises which poses an imminent threat to human life. § 87(2)(g)

it is recommended that Allegation D be **exonerated**.

Allegation E – Force: Sgt. Fitzroy Vigilance used a chokehold against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) testified that Sgt. Vigilance grabbed § 87(2)(b) from behind and placed him into a chokehold. Sgt. Vigilance denied this, and stated that he grabbed § 87(2)(b)’s arm. PO Ferrari confirmed that Sgt. Vigilance came from behind § 87(2)(b) but stated that he grabbed § 87(2)(b)’s shoulders. § 87(2)(b) stated that the he was choked for five minutes, § 87(2)(g)

It is recommended that Allegation E be **unsubstantiated**.

Allegation F – Force: Sgt. Fitzroy Vigilance used physical force against § 87(2)(b)

Allegation G – Force: PO Joseph Ferrari used physical force against § 87(2)(b)

Allegation H – Force: PO Jason LeMelledo used physical force against § 87(2)(b)

Allegation I – Force: PO Anthony Spedaleri used physical force against § 87(2)(b)

§ 87(2)(b) testified that Sgt. Vigilance and three white police officers kicked § 87(2)(b) in his face and over his body. Sgt. Vigilance banged the front, right side of § 87(2)(b)’s face against the floor. The officers did this for about three minutes until Sgt. Vigilance got the handcuffs on § 87(2)(b). Sgt. Vigilance picked up § 87(2)(b) by his handcuffs and pushed him from behind out the door. There are three or four steps going from the door and § 87(2)(b) stumbled down the steps into the wall.

Sgt. Vigilance, PO Ferrari, PO LeMelledo all testified that they were the three officers apprehending § 87(2)(b) they did not think any other officer assisted. PO Spedaleri and PO Carleo (discussed in Allegation J) also testified that they used force against § 87(2)(b) § 87(2)(g)

§ 87(2)(g) All these officers explained that they rolled on the ground with § 87(2)(b) for less than one minute, during which they did not punch or kick him.

§ 87(2)(b) testified that he sustained § 87(2)(b) and was treated at § 87(2)(b). § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

According to the NYPD Patrol Guide, section 203-11 (encl. 1V-W), officers should only use the amount of force necessary to overcome resistance. § 87(2)(g)

It is recommended that Allegations F, G, H and I be exonerated.

Allegation J – Force: PO Michael Carleo used physical force against § 87(2)(b) and

§ 87(2)(b)

§ 87(2)(b) testified that officers kicked and punched him for three minutes. § 87(2)(g)

However, according to PO Carleo's testimony, § 87(2)(b) was kicked once or twice by PO Carleo.

§ 87(2)(g) All officers testified that PO Carleo did not apprehend § 87(2)(b) and was not around § 87(2)(b) but PO Carleo admitted to apprehending § 87(2)(b). Also, PO Carleo testified that when he got up the stairs, his sergeant was rolling around with § 87(2)(b) on the ground and that, initially, no other officer was assisting the sergeant. No other officer testified that the sergeant was alone with § 87(2)(b). § 87(2)(g)

PO Carleo testified that he never punched § 87(2)(b). PO Carleo testified that he assisted Sgt. Vigilance by holding § 87(2)(b) down in his shoulder area so that they could pull his arms up. PO Carleo stated that he possibly kicked § 87(2)(b) around his upper torso on his arm. At first PO Carleo stated that the kick was an accident but then explained that he kicked § 87(2)(b) in the arm instead of trying to tackle the sergeant out of the way. PO Carleo feared for his sergeant's safety because he had no idea if § 87(2)(b) still had a knife on him.

Regarding the force used against § 87(2)(b), PO Carleo admitted to punching § 87(2)(b) in the face, causing a laceration to her lower lip. § 87(2)(g)

§ 87(2)(b) however, stated that she was later on the couch and beaten from behind; she assumed it was PO Carleo because when she turned around, he was there. PO Carleo stated that no force was used against § 87(2)(b) on the couch. PO Everett and PO Lawrence, neither of whom did not recall much of the incident during their testimonies, also did not witness any action on the couch. They testified that they did not see any interaction with PO Carleo but later on, when the investigation received PO Carleo's LOD report, both of these officers testified that they witnessed PO Carleo apprehend § 87(2)(b) causing an injury to his finger. § 87(2)(g)

In addition, PO LeMelledo, § 87(2)(g) testified that he saw § 87(2)(b) on the couch, struggling with PO Carleo and PO Everett. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Finally, § 87(2)(b) testified that the officers beat § 87(2)(b) after he was in handcuffs, but § 87(2)(b) testified that force was only used against him before being placed into handcuffs.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

it is

recommended that Allegation J be **unsubstantiated**.

Allegation K – Discourtesy: PO Michael Carleo spoke obscenely to § 87(2)(b)

§ 87(2)(b) testified that PO Carleo called her a “bitch.” PO Carleo did not outright deny this, but stated that it was highly unlikely that he called her a “bitch,” and that he did not recall what was said. No officer testified that he or she heard these comments. § 87(2)(g)

It is recommended that Allegation K be **unsubstantiated**.

Team: _____

:

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____